



DEPARTMENT OF THE NAVY
MID-ATLANTIC REGIONAL MAINTENANCE CENTER
CONTRACTS DEPARTMENT
9727 AVIONICS LOOP
NORFOLK, VA 23511-2124

J&A Number: N50054-25-125

CODE: 426.1

P.R. Number: [REDACTED]

JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY UNDER IDIQ

JUSTIFICATION

1. CONTRACTING ACTIVITY

The contracting activity is the Mid-Atlantic Regional Maintenance Center (MARMC), United States Navy (USN), Norfolk, Virginia, field activity of the Naval Sea System Command (NAVSEA), Washington, DC.

2. DESCRIPTION OF ACTION BEING APPROVED

The justification provides for awarding additional work to [REDACTED] as an exception to the fair opportunity process under contract number [REDACTED]

3. DESCRIPTION OF SUPPLIES/SERVICES

The work to be performed pursuant to this procurement consists of the following work on the [REDACTED] Work Item [REDACTED] Item is new work discovered after package award and needs to be incorporated into the A5A1 CMAV Fiscal Year 2025 Operations and Maintenance, Navy (OM&N) funds in the amount of [REDACTED]. The Government's minimum needs have been verified by the certifying technical and requirements personnel. The work must begin no later than 21 April 2025 and be completed by 30 May 2025 and must be integrated into the existing work package under contract [REDACTED]

4. IDENTIFICATION OF THE EXCEPTION TO FAIR OPPORTUNITY

The regulatory authority for this procurement is FAR 16.505(b)(2)(i)(A). The Agency's need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays.

5. RATIONALE JUSTIFYING THE EXCEPTION TO FAIR OPPORTUNITY

[REDACTED] was awarded delivery order [REDACTED] on 11 March 2025 to prepare for and accomplish maintenance, modernization and repair to the [REDACTED] during a Continuous Maintenance Availability (CMAV) that begins on April 21, 2025. The Work Completion Date for 5A1 CMAV is May 30, 2025.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] is the only company that is able to perform this work under such short notice, during the current CMAV, allowing [REDACTED] to meet its fleet mission commitments. Providing a fair opportunity to be considered to other awardees under the multiple award delivery order contract would result in unacceptable delays.

The certifying technical and requirements personnel have verified the Government's minimum needs. This must begin by April 21, 2025, and must be completed by May 30, 2025. [REDACTED] has no other availabilities on schedule to complete the required work and will no longer be mission ready nor mission capable.

Due to the ship's schedule and the duration required for the repairs, using the fair opportunity process would result in unacceptable delays. A competitive award would take approximately 60 days, which would not be allow for the viable work package integration of this urgent new work. Any delay would cause a disruption to ongoing Fleet scheduled maintenance repairs, which would cause an extension to [REDACTED].

The delay required for a competitive award would result in serious injury to the Government, as the ship will be unable to perform its previously scheduled deployment. [REDACTED] is the only company that is able to perform this work under such short notice during the current CMAV, allowing the [REDACTED] to meet its fleet mission commitments.

6. DETERMINATION OF FAIR AND REASONABLE COSTS

The Contracting Officer has determined that the anticipated cost to the Government for the supplies/services covered by the J&A will be fair and reasonable. The estimated cost of this work item is based upon historical data as well as the Independent Government Estimate (IGE) and the Project Manager's (PM) technical knowledge associated with the estimated man hours and material costs to complete this work. Additionally, the contractor's fully burdened ship repair labor rate and material burden rate were determined to be fair and reasonable at time of contract and delivery order award. The supported information provided should be sufficient to support the fair and reasonable cost determination of the procurement.

7. ACTIONS TO REMOVE BARRIERS TO COMPETITION

The critical nature of the work required that it be started immediately. Future acquisitions for similar work will be reviewed by the Contracting Officer on a case by case basis to promote the use of full and open competition in the acquisition process where possible and practicable in accordance with the FAR Part 6. In addition, a copy of the change(s) covered by this justification will be forwarded to Code 200, Planning and Engineering, for consideration of similar work requirements in future solicitations.

CERTIFICATIONS AND APPROVAL

COMBINED TECHNICAL/REQUIREMENTS COGNIZANCE CERTIFICATION (FAR 16.505(b)(2)(ii)(B)(9)):

I certify that the facts and representations under my cognizance, which are included in this justification, are complete and accurate to the best of my knowledge and belief.

SMITH.BARBARA.ANNETTE.1049422772

Digitally signed by SMITH.BARBARA.ANNETTE.1049422772 Date: 2025.04.09 16:27:55 -04'00'

Signature	Name Barbara A. Smith	Date
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LEGAL SUFFICIENCY REVIEW:

I have determined this justification is legally sufficient.

REACH.MARGARET.CRUZ.1454470032
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REACH.MARGARET.CRUZ.1454470032
Date: 2025.04.14

Margaret Reach 100C 757-400-0168 4/14/25

Signature

CONTRACT

I certify that

Upon the basis

the proposed procurement as described herein using other than fair opportunity, pursuant to the authority of FAR 16.505(b)(2)(i)(A), the agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays.

RIDDICK.DANICA.R.1556534558
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Danica Riddick 757-778-1703 14 APR 2025

Signature	Name (Print)	Phone No.	Date
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